Annex B

Format for providing public comments to DIFCA on Consultation Paper No. 2 of 2024 Proposed Amendment of the Prescribed Company Regulations (the "Proposed Regulations")

Note 1: DIFCA reserves the right to publish, including on its website, any comments you provide. However, if you wish to remain anonymous, you must expressly request at the time of making comments that this should be the case.

Note 2: The second column, 'comments on proposed policy' relates to the policy explained in the Consultation Paper paragraphs specified. The third column, 'comments on legislation' refers to the draft legislation reflecting the proposed policy.

Note 3: It is possible that you may not have any comments, either on the proposed policy or draft legislation, or may have comments on one and not the other. You may leave a blank column if you either agree to the proposed position, or you have no concerns relating it.

Note 4: If there are any ambiguities relating to the proposed policy or draft legislation, you may raise those in your comments.

Name of individual / entity providing comments:	

No	Comments on proposed policy	Comments on legislation
Qualifying requirements		
Q1: Do you think any other qualifying requirements should be included within the Prescribed Company Regime? If so, please provide details of specific use cases.		
Q2: Do you agree with the definition of GCC Registrable Asset? Are there any other types of asset that you think should be added to the list or are otherwise not appropriately captured by the definition? If so, what are these?		

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No	Comments on proposed policy	Comments on legislation
Q3: Do you agree with the definition of GCC Authority? Is there any other form of official government registration system that you think has not been adequately captured by the definition and that should be included? If so, please provide details.		
Q4: Do you agree with the six (6) month grace period provided at Regulation 3.1.3 (as described at paragraph 23 above). If not, please suggest an alternative time period and your reasons for this.		
Q5: Do you have any other comments or suggestions in relation to the proposed qualifying requirements?		
Use of Prescribed Companies:		
Q6: Do you have any concerns regarding the proposed amendments affecting the use of Prescribed Companies either with regards to licensing or the prohibition on Employees? If so, please provide details.		
Registered office requirements and other consequential changes		
Q7: Do you have any issues, proposed amendments or other suggestions in respect of any of the miscellaneous changes proposed?		

Any personal data provided by you will be used, recorded and processed by us in accordance with the relevant statutory basis including the Data protection law 2020, We do not disclose any information you provide to any third parties or other government authorities except where (i) such disclosures are necessary to fulfill our obligations to you in which case we will require such third parties to agree to treat it in accordance with thus policy; (ii) required by applicable laws, courts orders, or government regulations (for example to prevent or detect crime); (iii)you give us permission to do so, please see the Data Protection law 2007 for a full account of your rights relating to data protection.

No	Comments on proposed policy	Comments on legislation
Q8. Are there any other issues, not included in the Proposed Regulations that warrant attention? If so, what are they, and why and how, should they be addressed?		
Other or general comments		